

DEC 23 1996



US Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8692
(SIXTH REVISION)

EXPIRATION DATE: July 31, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Mitsubishi International Corp.
New York, New York
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain materials listed in paragraph 6 below in collapsible polyethylene-lined, woven polypropylene bags having a capacity not to exceed 2,200 pounds each. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.152.
5. BASIS: This exemption is based on the application of Mitsubishi International Corp., dated August 1, 1995, and subsequent letters dated November 14, 1996 and December 9, 1996, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Sodium persulfate	5.1	UN1505	III
Ammonium Persulfate	5.1	UN1444	III
Potassium Persulfate	5.1	UN1492	III

7. SAFETY CONTROL MEASURES: Packaging prescribed is a non-DOT specification collapsible flexible bag, nonreusable bulk container, manufactured by National Marine Plastic, Limited. The bag is fabricated of woven polypropylene, reinforced with woven polypropylene belts and having woven polypropylene rope handles. Bag also has a lining of polyethylene (of 0.008-inch minimum thickness) and a capacity not to exceed one metric ton (1000 kg. or approximately 2200 pounds). Bag, closed as for shipment, must be capable of satisfactorily withstanding: one of the following series of tests (1) Free-fall Drop tests; Jerk test; Topple test; Topple and Drag test; Righting test; Abrasion test; as described in "Procedures for Performance Testing of Flexible Intermediate Bulk Containers," Packaging Institute, U.S.A., procedure T-4102-85, dated February, 1985 or, (2) UN Chapter 16 tests from "Recommendations for Transport of Dangerous Goods" Seventh Revision; All tests applicable to Flexible Intermediate Bulk containers. Details for one metric ton bags on bag construction and materials are shown on Drawing No's. 2766-1A, and 2925A or 2766-C(F) dated 3 February 93. Details for the 500kg (1100 pounds) bags construction and materials are shown on Drawing No's. 1447082 or 2767-A(E).
8. SPECIAL PROVISIONS:
- a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
- b. Each bag must be permanently and durably marked, in accordance with the requirements of Section 172.331 in letters at least two inches high on a contrasting background. In addition, for shipments by vessel, the marking requirements of subsection 26.1.5 of the General Introduction to the IMDG Code are required. The use of labels, tags or signs for marking purposes is prohibited.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.
10. MODAL REQUIREMENTS:
- a. A copy of this exemption must be carried aboard each vessel and motor vehicle used to transport packages covered by this exemption.

b. Shipment by highway and water must be in 20- or 40-foot freight containers or truckload lots only.

c. Shipment by rail must be in 20- or 40-foot containers on "DF" rail equipment. (Note: 49 CFR 174.84 prohibits "humping" of involved COFC/TOFC rail cars.)

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

DEC 23 1996

Alan J. Roberts
Alan J. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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